

- RAG Learning

2.1 The US Constitution and Federalism

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

The US Constitution was drafted at the Philadelphia Convention in **1787**, ratified in 1788 and in force from 1789. It is **codified** and **entrenched** — a single authoritative document standing above ordinary legislation and amendable only by a double supermajority. Almost every difference between US and UK government traces back to those two words.

1. Structure of the Constitution

- **Article I** — the legislative branch (Congress).
- **Article II** — the executive branch (the President).
- **Article III** — the judicial branch (the Supreme Court and federal courts).
- **Articles IV–VII** — relations between the states, the amendment process, the supremacy clause, ratification.
- **Amendments** — 27 in total; the first ten (the **Bill of Rights**, 1791) were ratified together.

2. The amendment process

Stage	Requirement
Proposal	Two-thirds of <i>both</i> houses of Congress, <i>or</i> a national convention called by two-thirds of state legislatures (never used)
Ratification	Three-quarters of state legislatures, <i>or</i> ratifying conventions in three-quarters of states

Exam Tip: The **double supermajority** is the single most consequential feature of the Constitution. Thirteen states — which may between them hold a small fraction of the national population — can block any amendment. Only 27 have succeeded since 1789, and ten of those arrived together in 1791. The Equal Rights Amendment passed Congress in 1972 and still failed ratification.

Consequences of entrenchment

- **Constitutional change happens through judicial interpretation instead.** Because formal amendment is near-impossible, the Supreme Court has become the effective engine of constitutional development — which is why appointments are fought over so fiercely.
- **Obsolete provisions persist.** The Electoral College has twice since 2000 elected a President who lost the popular vote, and polling shows majority support for reform — but the states it advantages would have to consent to their own disadvantage.

3. Principles of the Constitution

Separation of powers

Legislative, executive and judicial functions are vested in **separate institutions with separate personnel**. A member of Congress cannot simultaneously serve in the executive — the opposite of the UK's fusion, where ministers are drawn from and sit in Parliament.

Checks and balances

The branches deliberately *overlap*, each holding specific powers to limit the others.

Branch	Checks Congress	Checks the President	Checks the Courts
Congress	—	Override veto (2/3 both chambers); power of the purse; Senate confirms appointments and ratifies treaties (2/3); impeachment	Confirms judicial nominees; can impeach judges; controls appellate jurisdiction and the

			number of justices; can propose amendments
President	Veto; can call special sessions; sets the agenda via State of the Union	—	Nominates federal judges; grants pardons
Courts	Declare Acts of Congress unconstitutional	Declare executive actions unconstitutional	—

Bipartisanship, limited government and federalism

The design assumes that no branch can act decisively alone, so broad agreement is required. This makes **gridlock the intended consequence**, not a malfunction — a point worth making explicitly whenever you evaluate the system's effectiveness.

4. Federalism

Federalism — power is constitutionally divided between a national government and regional governments, each sovereign in its own sphere, with neither able to abolish the other.

Types of power

Type	Definition	Examples
Enumerated (delegated)	Expressly granted to the federal government	Declare war, coin money, regulate interstate commerce, raise armies
Implied	Inferred from enumerated powers via the necessary and proper (elastic) clause	Establish a national bank; federal regulation of the economy

Reserved	Under the Tenth Amendment , all powers not delegated federally nor prohibited to the states	Education, policing, the conduct of elections, professional licensing, and since <i>Dobbs</i> , abortion regulation
Concurrent	Held by both levels	Taxation, law enforcement, building roads

The **supremacy clause** (Article VI) establishes that the Constitution and federal law made under it prevail over conflicting state law.

5. How federalism has changed

Phase	Period	Character
Dual federalism	Founding – 1930s	"Layer cake" — federal and state governments operating in largely distinct spheres; the federal role confined mainly to defence, currency and interstate commerce narrowly construed
Cooperative federalism	New Deal onwards	"Marble cake" — shared functions; federal grants funding state-administered programmes in transport, welfare, education and health
New Federalism	Nixon, Reagan onwards	Attempted reversal — block grants replacing categorical grants to restore state discretion
Renewed divergence	Recent decades	Sharp state-level differences on cannabis, healthcare expansion, voting procedures and abortion, driven by polarisation and federal gridlock

Three engines of federal expansion

1. **The commerce clause.** From the New Deal the Court accepted that Congress could regulate almost any activity substantially affecting interstate commerce. This proved extraordinarily

elastic, underpinning federal regulation of wages, agriculture, civil rights in public accommodation and the environment. The reversal in *United States v Lopez* (1995), striking down a federal gun-free school zones law, showed the expansion was not irreversible.

2. **Fiscal power.** Federal income tax (Sixteenth Amendment) gave Washington revenues the states could not match. **Conditional grants** then allowed it to direct state policy in areas where it cannot legislate directly — the national minimum drinking age was secured by attaching conditions to highway funding.
3. **Crisis and war.** The Depression, the Second World War and the Cold War all concentrated authority in Washington.

Exam Tip: Fiscal federalism is the most analytically interesting point because it circumvents the constitutional division of powers entirely: states remain formally sovereign in the relevant field while being financially unable to refuse. The Constitution's text is unchanged; the practical balance has shifted enormously.

6. Evaluating the Constitution

Strengths	Weaknesses
Disperses power effectively — has constrained presidents through impeachment, adverse rulings, congressional refusal and midterm losses	Gridlock — major legislation frequently fails even after a President wins a national mandate
Entrenches rights — beyond the reach of ordinary majorities, judicially enforceable against both levels of government	Rights depend on interpretation — <i>Dobbs</i> showed a fifty-year precedent can be reversed after three appointments
Stability with adaptability — survived civil war, depression and profound social change	Undemocratic features persist — the Electoral College; Senate malapportionment giving Wyoming and California equal representation

Federalism accommodates diversity across a continental state

Transfers constitutional authorship to the Court — nine unelected justices become the effective amenders

Exam Tip: The strongest evaluative insight: the Constitution's greatest strength and its greatest weakness are **the same feature**. Entrenchment protects rights from temporary majorities *and* makes obsolete provisions unreformable; the separation of powers prevents tyranny *and* produces paralysis. A conclusion that recognises this outperforms one that tallies a list.

Key terms

Term	Definition
Codified	Collected into a single authoritative document with higher legal status
Entrenched	Protected from amendment by ordinary legislation
Separation of powers	Legislative, executive and judicial functions in separate institutions with separate personnel
Checks and balances	Specific powers allowing each branch to limit the others
Enumerated powers	Powers expressly granted to the federal government
Implied powers	Powers inferred via the necessary and proper clause
Reserved powers	Powers left to the states or the people under the Tenth Amendment
Supremacy clause	Federal law prevails over conflicting state law
Commerce clause	Congressional power to regulate interstate commerce — the main engine of federal expansion

Categorical / block grants	Federal funds with tight conditions / with broad state discretion
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Essential examples

- **Bill of Rights 1791** — ten amendments ratified together.
- **Equal Rights Amendment** — passed Congress 1972, never ratified; entrenchment in practice.
- ***United States v Lopez (1995)*** — commerce clause limits revived.
- **National minimum drinking age** — secured through highway funding conditions; fiscal federalism.
- ***Dobbs (2022)*** — abortion regulation returned to the states; federalism producing sharply divergent rights.
- **New Deal** — the shift from dual to cooperative federalism.